4862

Executive Order

SUPPLEMENTAL TO THE EXECUTIVE ORDER OF OCTOBER 12, 1917, VESTING POWER AND AUTHORITY IN DESIGNATED OFFICERS, AND MAKING RULES AND REGULATIONS UNDER THE "TRADING WITH THE ENEMY ACT."

By virtue of the power and authority vested in the President by "An Act to define, regulate, and punish trading with the enemy and for other purposes", known as the "Trading with the Enemy Act", approved October 6, 1917, and the amendments thereto, I hereby make the following orders, rules and regulations:

1. I hereby vest in the Alien Property Custodian all power and authority conferred upon the President by the provisions of Section 9 of the Act approved October 6, 1917, known as the "Trading with the Enemy Act", as amended by the various amendments thereto and by the "Settlement of War Claims Act of 1928", approved March 10, 1928, pertaining to the following classes of claims:

(a) Every claim in which the total amount to be returned does not exceed in money or other property the value of $10,000.

(b) Every claim where recovery may be had under paragraphs 15, 16, 17, 18, 19, 20, 21 and 22 of Subsection (b) of Section 9 of the Trading with the Enemy Act, as amended by the "Settlement of War Claims Act of 1928".

(c) Every claim of a German national where only 80 per cent of the principal is returnable, except as to claims under Subsections (d) and (g) of Section 9 of the Trading with the Enemy Act, as amended.

(d) Every claim of a German national where the money or other property belonging to him and remaining in the possession of the Alien Property Custodian or the Treasurer of the United States, after deducting the sum of $10,000 returnable under the amendment to the Trading with the Enemy Act of March 4, 1923, is less than $2,000.

The Alien Property Custodian may refer any claim to the Attorney General for an opinion upon the law or facts upon which such claim is based.

2. I hereby vest in the Alien Property Custodian all power and authority conferred upon the President by Sections 20, 21 and 23 of the Act approved October 6, 1917, known as the "Trading with the Enemy Act", as amended by the Act entitled "An Act to amend the Trading with the Enemy Act", approved March 4, 1923, and by the "Settlement of War Claims Act of 1928".

3. All claims for the return of unallocated interest shall continue to be paid under the regulations existing prior to the approval of the "Settlement of War Claims Act of 1928", pending the general allocation of such unallocated interest funds by the Alien Property Custodian.

4. All other Executive Orders heretofore made are hereby amended and modified to such extent as may be necessary to conform to the provisions hereof.

CALVIN COOLIDGE

THE WHITE HOUSE,
April 23, 1928.

[No. 4862]

Deleg. of Power -- Label

See Nos 514, 608, 62[illegible]

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